

injuries, which forms the subject matter of this action, Intervenor provided workers' compensation benefits to or on plaintiff's behalf such that it has the right to intervene in this action.

Analysis

The Motion for Leave to Intervene is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Leave to Intervene is GRANTED.
2. Intervenor to prepare and submit a proposed order after hearing.

11. 9:00 AM CASE NUMBER: C25-01056
CASE NAME: AUDREY WILLIAMS VS. ROLLING HILLS MEMORIAL PARK
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY:
TENTATIVE RULING:

Defendant, Rolling Hills Memorial Park, filed this motion to compel arbitration after plaintiff, Audrey Williams, filed her complaint against it. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, such agreement exists, as discussed below. The motion is **granted**. The Court stays the action and sets a case management conference on July 28, 2026 at 8:30 a.m. for an update on the status of arbitration.

Background

Plaintiff alleges that she went to Rolling Hills Memorial Park on April 14, 2023 to pay respects to her mother. (Complaint, ¶32.) Upon arrival, plaintiff had trouble locating her mother's burial site. (*Id.* at ¶33.) When she contacted defendant's employees, it was revealed that a grave marker for another deceased person was mistakenly placed on plaintiff's mother's burial site. (*Ibid.*) The incident is believed to be the "tip of the iceberg" of misconduct. (*Id.* at ¶31.) Defendant has repeatedly made mistakes on headstones, burials, locations of body, etc., for years. (*Ibid.*) It has continued a pattern of poorly maintaining its entire property and providing insufficient security, such that headstones are covered with debris, families cannot find their loved ones, and graves are vandalized and offerings and ornaments stolen. (*Ibid.*) Defendant has concealed damage and/or errors from loved ones and failed to respond to or address known issues in a timely manner. (*Ibid.*)

Plaintiff filed this lawsuit on April 14, 2025, alleging seven causes of action including: (1) Breach of Contract; (2) Negligence; (3) Violations Of Business & Professions Code § 17200, Et Seq.; (4) Violations Of Business & Professions Code § 17500, Et Seq.; (5) Nuisance; (6) Trespass; and (7) Intentional and/or Negligent Infliction Of Emotional Distress.

In response, defendants moved to compel arbitration under the 2009 agreement, arguing that plaintiff signed an agreement containing an enforceable arbitration provision. Rolling Hills argues the Federal Arbitration Act governs enforceability, and that the agreement is enforceable.

In support of the motion, defendants submit a declaration from John C. Barr ("Barr Decl."),

the Director of Operations of Rolling Hills Memorial Park, describing the procedures defendant uses to obtain and store contracts such as those signed by plaintiff. The declaration attaches the 2009 agreement signed by plaintiff, which includes an arbitration provision. The arbitration provision is all capitalized in a bold, single-spaced font. The provision is within a longer paragraph that relates to other matters as well, such as disclaiming warranties. The provision states, in relevant part:

IN THE EVENT OF A DISPUTE IN ANY MATTER RELATING TO OR ARISING OUT OF THIS AGREEMENT, THE PARTIES SHALL MEET, CONFER AND NEGOTIATE IN GOOD FAITH IN AN ATTEMPT TO RESOLVE THE DISPUTE. IN THE EVENT THE PARTIES ARE UNABLE TO RESOLVE THE DISPUTE THEMSELVES, THE DISPUTE SHALL BE RESOLVED THROUGH BINDING ARBITRATION CONDUCTED BY JUDICIAL ARBITRATION AND MEDIATION SERVICES, INC. IN CONTRA COSTA COUNTY, CALIFORNIA.

Plaintiff opposes the motion, not disputing that she executed the 2009 contract attached by Mr. Barr, or that its arbitration provision is governed by the FAA. Plaintiff contends she was asked to sign the 2009 agreement “in rapid fashion” and without explanation. (Supplemental Declaration of Audrey Williams in Support of Opposition, hereafter “Supp. Williams Decl.,” ¶13.) Plaintiff opposes the motion in part because she contends the 2009 agreement to arbitrate is unconscionable and therefore unenforceable.

In any event, plaintiff argues that a later 2017 agreement superseded the 2009 agreement. The 2017 agreement contained an arbitration provision as well, but the provision required plaintiff to initial the provision in order for it to take effect. Plaintiff’s declaration states she did not initial the provision. The document (Declaration of Sanjiv N. Singh in Support of Opposition, Ex. 1 [Declaration of Audrey Williams filed in Frost case], hereinafter “Williams Decl.,” Williams Ex. 2) shows a slash mark on the blank line, but plaintiff indicates that it is not her initials. (Supp. Williams Decl., ¶15.) When she executed the later agreement, she was “assisted by a staff person” who “controlled the document from behind their desk or counter, and asked [plaintiff] to sign in certain areas.” (*Id.*, ¶14.) Plaintiff further notes that “the hatch marks seen on the document now (which are not my initials), were likely made by a staff person who indicated that those sections did not apply to me. I know with 100% certainty I did not make those hatch marks.” (*Id.* at ¶15.)

Defendant’s reply raises argument related to plaintiff’s lack of authority to modify her deceased mother’s contract. In part to allow parties to better address this argument, and in part to allow them to brief whether a stay pending the *Frost* appeal is appropriate, Judge Devine continued the hearing on this matter and gave both sides the opportunity to submit supplemental papers. Both sides have provided supplemental briefing which the Court has considered.

Evidentiary Matters

Both sides request judicial notice. In support of her opposition, plaintiff seeks judicial notice of Judge Weil’s Order After Hearing denying the motion to compel arbitration in *Paula Frost v. Rolling Hills Memorial Park* (Contra Costa County Superior Court Case No. C24-02653, hereinafter “the Frost case”).

On reply, defendant requests judicial notice of (A) the declaration of Audrey Williams filed on May 20, 2025 in the Frost case, (B) Judge Weil’s Order After Hearing denying the motion to compel arbitration in the Frost case, (C) the Notice of Appeal filed in the Frost case with respect to that order, and (D) Judge Weil’s order denying plaintiff’s motion to consolidate this case with the Frost case.

With its supplemental brief defendant also requests judicial notice of (A) Frost’s

memorandum of points and authorities in support of her motion to consolidate the cases, (B) Frost's Complaint, and (C) Williams' Notice of Related Cases filed in this matter on June 26, 2025.

These requests are **granted**. (Evid. Code § 452 (d) [authorizing judicial notice of records of any court of this state].)

Standard

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2025) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate**. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) ("FAA") applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Discussion

1. Agreement to Arbitrate

Here, defendant provides a copy of a contract allegedly signed by plaintiff in 2009. The contract contains an Arbitration Agreement. (Exhibit A to Barr Decl.) Plaintiff does not deny the contract is one that she signed, instead confirming the document is what defendant purports it is. (See Williams Decl., Ex. 1.) Plaintiff contends she was asked to "sign the form in rapid fashion," and points out that no one disclosed the existence of an arbitration clause or explained the meaning.

Assent is determined based on an objective standard and, since plaintiff provides no evidence of having sought clarification or asking any questions, "[a] party cannot use his own lack of diligence to avoid an arbitration agreement." (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674,

citations omitted.) Parties dealing at arm's length have no duty to explain to each other the terms of a written contract. (*Ramos v. Westlake Services LLC* (2015) 242 Cal.App.4th 674, 686, citations omitted.) One who accepts or signs a contract is deemed to assent to all its terms. (*Ibid.*) Plaintiff's evidence concerning a surprise arbitration clause in the 2009 contract goes to her argument on procedural unconscionability, addressed below, but it does not defeat formation.

The Court finds the 2009 agreement contains a mutual agreement to arbitrate.

Plaintiff presents forms she signed in 2017, including one entitled "Specific Terms, Conditions, & Agreements." The first provision of this form states: "BY INITIALING BELOW, PURCHASER AGREES THAT ALL DISPUTES ARISING OUT OF OR RELATING TO THE AGREEMENT SHALL BE SUBMITTED TO AND DECIDED BY MANDATORY AND BINDING ARBITRATION UNDER THE FEDERAL ARBITRATION ACT." (Williams Decl., Ex. 2.) Plaintiff did not initial this arbitration provision. (*Ibid.*) She argues that the lack of initials beneath the 2017 arbitration provision means she effectively revoked the earlier 2009 agreement to arbitrate.

The terms of a final, integrated contract "may not be contradicted by evidence of any prior agreement or of a contemporaneous oral agreement." (Code Civ. Proc., § 1856, subd. (a).) But a written instrument "may be explained or supplemented by evidence of consistent additional terms unless the writing is intended also as a complete and exclusive statement of the terms of the agreement." (Code Civ. Proc., § 1856, subd. (b).) (See *Grey v. American Management Services* (2012) 204 Cal.App.4th 803, 806-807 ["crucial issue in determining whether there has been an integration is whether the parties intended their writing to serve as the exclusive embodiment of their agreement"].)

There is no integration clause in the later agreement (at least in the documents provided to the Court). The uninitialed arbitration provision creates an ambiguity as to the intent of the parties and whether there is a valid arbitration agreement. While the language of the contract would ordinarily be interpreted against the party that caused the uncertainty (Civ. Code, § 1654), it is unclear which party is responsible here for that uncertainty.

The ambiguity permits the Court to consider extrinsic evidence to explain the ambiguity. (*Appleton v. Waessil* (1994) 27 Cal.App.4th 551, 554; *Sweeney v. Earle C. Anthony, Inc.* (1954) 128 Cal.App.2d 232, 235.) Based on the sole payment of a state tax, and reference to the earlier contract, the parties do not appear to have intended the second contract to be a final and complete expression of their agreement. (Code Civ. Proc., § 1856, subd. (d).)

Here, the extrinsic evidence from plaintiff herself and recounting of the transaction shows that she did not intentionally refuse to sign the arbitration provision. She simply was not given the option of reading or controlling the contract, which was "controlled" by the defendant's employee who told her where to sign. This undermines any argument that the parties agreed to modify the original 2009 arbitration agreement.

This fact sets this case apart from *Frost*, wherein the plaintiff "deliberately chose not to initial" the later agreement's arbitration provision. (See RJN, Ex. 1 [June 6, 2025 Order After Hearing in *Frost*] page 3.) Another distinguishing aspect of the present motion is the lack of a new transaction at the time of burial. Plaintiff did not purchase a headstone like the plaintiff in *Frost*, whose purchase of a grave marker appears to underpin multiple allegations in her complaint concerning markers specifically. The headstone purchase created a new contractual relationship with Frost that is not present in this case.

Defendant argues the 2009 contract can only be modified with the consent of all parties. The Court is unconvinced on this point since the claims being asserted here belong to Williams, not her mother.

In any event, the Court finds that there was no meeting of the minds sufficient to constitute an agreement to modify the original contract which included a binding and enforceable arbitration provision. (*Moore v. Wells Fargo Bank, N.A.* (2019) 39 Cal.App.5th 280, 287 [a modification of a contract is a change in the obligations of a party by a subsequent mutual agreement of the parties]).

Accordingly, the Court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as plead in the operative complaint by plaintiff. The Court further finds that plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

2. Unconscionability

Plaintiff asserts that the arbitration agreement defendant seeks to enforce is unconscionable. Plaintiff bears the burden to prove this defense. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) To briefly recapitulate the principles of unconscionability, the doctrine has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071, citing *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113-114.) Procedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability, but they need not be present in the same degree. (*Armendariz, supra*, 24 Cal.4th at 114.) Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. (*Ibid.*) In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. (*Ibid.*)

a) Procedural Unconscionability

Plaintiff argues that the arbitration provision in the 2009 agreement was an adhesion contract that was not explained or highlighted by any representative for defendant. She further points to the font size and illegibility. Defendant responds that the provision appears in a “simple, two-page agreement” and was in bold capital letters. Defendant nevertheless concedes “minimal procedural unconscionability,” arguing the showing nonetheless fails based on the lack of any substantive unconscionability.

b) Substantive Unconscionability

Plaintiff argues the fee shifting provisions are substantively unconscionable based on Code of Civil Procedure, § 1284.3 which prohibits arbitrators in California from administering consumer arbitrations containing clauses that require consumers to pay fees and costs incurred by the opposing party. Defendant responds that the statute is preempted by the FAA, which invalidates state-law contract defenses specific to arbitration. Curiously, defendant cites no authority on this specific point despite the statute having been in effect for over 20 years. The Court nonetheless finds persuasive *Tompkins v. 23andMe, Inc.* (9th Cir. 2016) 840 F.3d 1016, cited by defendant, which found a similar fee shifting provision was not unconscionable in the consumer context in light of Code of Civil Procedure, § 1284.3 and subsequent interpretation by the California Supreme Court. That court

stated, in relevant part:

We conclude that the arbitration fee-shifting provision in the Terms of Service is not unconscionable. As in *Sanchez*, the plaintiffs here do not claim, and no evidence in the record suggests, that the arbitration fees are unaffordable for them or would thwart their ability to arbitrate this dispute. Under the case-specific standard announced in *Sanchez*, the fee-shifting clause in the Terms of Service is not unconscionable. *Sanchez*, 61 Cal. 4th at 911. We therefore conclude that the plaintiffs here did not carry their burden of demonstrating the substantive unconscionability of the bilateral prevailing party clause.

(*Tompkins v. 23andMe, Inc.* (9th Cir. 2016) 840 F.3d 1016, 1027, discussing *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 918 [adopting an ability-to-pay test under Code of Civil Procedure § 1284.3, which is applicable on its face to indigent consumers but extended by courts to all consumers].)

Plaintiff also argues that the provision allowing discovery based on the arbitrator's discretion is substantively unconscionable. Plaintiff cites no authority, but defendant cites *Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, which appears to directly contradict the argument. (*Id.* at 689-690 [fact that an arbitration clause may limit discovery rights is not substantively unconscionable because such a finding would cause every arbitration clause to fail].)

Finally, the Court rejects plaintiff's argument that the arbitration agreement should not be enforced on public policy grounds.

Having considered the totality of the evidence before the Court, the Court does not conclude that the subject arbitration provision to be unconscionable or otherwise enforceable.

12. 9:00 AM CASE NUMBER: C25-01068
CASE NAME: CHRISTOPHER LONDAHL VS. DOES 1-10
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER FILED BY CHRISTOPHER LONDAHL.
FILED BY:
TENTATIVE RULING:

Plaintiff Christopher Londahl, as Special Administrator of the Estate of David W. White's Application for Right to Attach Order and for Writ of Attachment is denied.

Background

Plaintiff Christopher Londahl brings this action in his capacity as Special Administrator of the Estate of David W. White. Defendant Mary Ann LaFleur-White is the surviving spouse of David White. David White and Defendant married on August 4, 2018, after executing a premarital agreement addressing their respective property rights. Prior to the marriage, David White had established estate planning instruments, including the David and Carol White Revocable Trust, which later divided into a Family Trust and a Survivor's Trust following the death of his first wife. According to the complaint, a Third Restatement of the Survivor's Trust provided specified distributions to Defendant and allocated the remainder of the estate to David White's children and grandchildren.